Notice of Project Completion Date
City of Memphis DPA HOME Program

HOMEBUYER(S): _____
ADDRESS: _____
CITY, TN ZIP CODE: _____

Dear HOMEBUYER(S):

As you are aware, your purchase of the property at _____ (PROPERTY ADDRESS) was financed in part a HOME Loan from the City of Memphis Division of Housing and Community Development (HCD) under its Down Payment Assistance Program (DPA). The City/HCD uses funding received from HUD under the HOME Investment Partnerships Program (HOME) for its DPA program.

As a part of your purchase, you entered into a Homebuyer Agreement with the City. That agreement was signed by the City and became effective as of_____ (AGREEMENT DATE) and copies of the agreement were provided to you at closing. As part of the closing on your purchase, process you also signed a Note and Mortgage in favor of the City to secure the HOME funds you borrowed.

As of your execution of the Agreement and the closing, the actual date of "Project Completion" was not known. The date of "Project Completion" affects both the term of your Agreement (see Agreement) with the City and the "Affordability Period" of 5 years, identified in that Agreement.

Pursuant to your Agreement with the City, this Notice is for the purpose of informing you and documenting that the actual date of Project Completion was _____ **(COMPLETION DATE)**. Further, the final amount of HOME direct assistance provided to you, consistent with the Note you signed at closing, was $_____ **(FINAL DPA HOME LOAN)**. Based on the date of Project Completion, the expiration of your Agreement with the City, the end of the Affordability Period required by HOME program regulations, and the final maturity date of the Note for your HOME Loan will all be _____ (END OF TERM DATE).

As called for in your HOME Agreement and in the provisions of the Note, this Notice automatically amends your Agreement and Note to reflect the dates and amounts explained in this Notice.

As a reminder, during the term of your Agreement with the City and the HOME Loan associated with it, you must continue to occupy the property at _____(PROPERTYADDRESS) as your primary place of residence, pay all property taxes when due, maintain appropriate insurance. While the DPA HOME Loan does not require any monthly payments, you must also continue to make payments as agreed on your first mortgage loan.

If you choose to sell your home prior to the expiration of your Agreement with the City and within the term of the associated DPA HOME Loan, please contact HCD at 901-636-7326 to obtain the outstanding balance of your DPA HOME Loan and instructions for remitting payment of any balance due to HCD.

City of Memphis
Division of Housing & Community Development
Affordable Housing Department
Downpayment Assistance Office

Copy to loan/project file.

City of Memphis – HOME Program
Homebuyer Written Agreement_____

NOTICE TO HOMEBUYER: *This Agreement contains requirements you must fulfill in exchange for the federal assistance you are receiving through the HOME Investment Partnerships Program (HOME Program). You should read each paragraph carefully and ask questions regarding any sections you do not fully understand. This Agreement is intended to be separately enforceable from, and survive any prepayment of, the deferred loan and deed of trust as set forth in Section 1 below. You should be sure that you thoroughly understand these documents before you sign them.*

THIS AGREEMENT is entered into this_____day of_____,_____by and between the City of Memphis, a Tennessee municipal agency ("City"), and _____., ("Homebuyer(s)").

WITNESSETH

WHEREAS, City is a participating jurisdiction under the HOME Investment Partnerships Program ("HOME") administered by the United States Department of Housing and Urban Development ("HUD"); and

WHEREAS, City has the authority to enter into binding agreements for the expenditures of all or a portion of its HOME funds, program income, and matching funds; and

WHEREAS, the regulations of 24 CFR Part 92, known as the HOME Final Rule (as now in effect and as may be amended from time to time), which are incorporated by reference hereto and made a part hereof and constitute a part of this Agreement, govern the City's implementation of the HOME program; and

WHEREAS, City has determined that Homebuyer meets the eligibility requirements to purchase the single unit dwelling, including form of homeownership, property standards, and income determination for the property located at _____(the "Property"), the closing on the purchase of which must occur no later than _____ ***(Enter actual closing date).***

NOW, THEREFORE, in accordance with the mutual understanding and agreements set forth herein, City and Homebuyer agree as follows:

SECTION 1. LOAN

The City will loan Homebuyer an amount not to exceed $_____"Loan"), which funds were provided to City by HUD through the HOME Program, to assist Homebuyer with a down payment, closing costs, and/or a portion of the purchase price of the Property, therefore representing direct HOME assistance to the Homebuyer.

The Loan will be evidenced by a promissory note executed by Homebuyer in favor of City ("Note") and secured by a "Declaration of Restrictive Covenants" and Deed of Trust Deferred Payment Loan ("Deed of Trust") securing the promissory note to be filed in the Register's Office of Shelby County, Tennessee which the Property is located. The terms and Maturity of the Loan are as specified in the Note and Deed of Trust, and the Note and Deed of Trust will be released upon repayment of the Loan under the terms set forth therein. Homebuyer may, but is not required to, prepay the Loan, in whole or in part, at any time.

SECTION 2. AGREEMENT TERM.

The duration of this Agreement and the Affordability Period will be the same.

This Agreement shall survive any prepayment of the Loan and/or any release of the Deed of Trust that does not include a transfer of the Property and shall continue for the full Affordability Period, as defined in Section 3. This Agreement will expire upon expiration of the Affordability Period and any and all obligations as set forth in the Declaration of Restrictive Covenants, Note and Deed of Trust shall become null and void upon the maturity dates coinciding with expiration of this Affordability Period.

Once Homebuyer has compiled with the terms of this Agreement and the period of affordability, as described in Section 3 below, has expired, the deferred, forgivable loan, as described in Section 1 above, will have been completely forgiven and no indebtedness will be due to the City nor under the Home Investment Partnerships Program (HOME Program).

SECTION 3. AFFORDABILITY PERIOD

The period of affordability for the Property will be for five (5) years and will begin on the closing date as noted in this agreement and shall end on_____date (the "Completion Date" and the "Affordability Period"). The Completion Date will occur after the execution of this Agreement. City will provide a formal written notice to the Homebuyer of the Completion Date and the resulting expiration date of this Affordability Period and this Agreement. In general, the City anticipates such notice shall be issued within 90 days of Homebuyer's closing on the purchase of the Property. The expiration of this Agreement and the Affordability Period shall be the same. Additionally, upon issuance of such notice, this Agreement shall be deemed amended to reflect the expiration date of the Affordability Period and such notice, along with this Agreement, will be filed with the City's Division of Housing and Community Development Loan Portfolio Department.

If Homebuyer sells or transfers ownership of the Property voluntarily or involuntarily, including via foreclosure or deed in lieu of foreclosure, the Affordability Period will end upon the recapture of the full amount of the direct HOME assistance by City as described in Section 6 below.

SECTION 4. PROPERTY VALUE, PURCHASE PRICE LIMITS, AND MAXIMUM HOME INVESTMENT

The appraised value of the Property is $_____, and the purchase price of the Property is $_____, which is within the applicable HOME maximum purchase price limit for the City of Memphis. The applicable purchase price limit is $300,000 for new construction and $300,000 for existing housing. Further, including any HOME funds invested toward the development of the Property and any of the City's project-related soft costs, the total HOME investment inclusive of the direct HOME assistance to the buyer will not exceed the applicable maximum per-unit subsidy determined by HUD under 24 CFR 92.250. As of the date of this Agreement the applicable subsidy limit for a 4-bedroom unit is $_____.

SECTION 5. PRINCIPAL RESIDENCE

During the Affordability Period, barring a sale or transfer of title to the Property, which shall be governed by Section 6 below, the Homebuyer shall at all times maintain the Property as his/her principal residence. Should Homebuyer cease to maintain the Property as his/her principal residence, rent the residence to another party, or convert the Property to a non-residential use, Homebuyer will be in breach of this Agreement and subject to the Default and Enforcement provisions under Section 10.

SECTION 6. RECAPTURE AGREEMENT

In compliance with 24 CFR 92.254(a)(5), if Homebuyer sells or otherwise voluntarily or involuntarily transfers title to the Property during the Affordability Period, including transfer as a result of foreclosure or deed in lieu of foreclosure, then the outstanding direct HOME assistance to the buyer (entire remaining balance of the Loan amount as determined pursuant to the terms of the Note) will be recaptured by the City.

However, if the net proceeds of the sale are insufficient to repay the direct HOME assistance, then the entire net proceeds will be recaptured and retained by City to satisfy both this Agreement and the Loan. If there are no net proceeds, repayment is not required, and the HOME Program requirements are considered to be satisfied. The term "net proceeds" is defined as the sale price less the balance due on superior secured debt and closing costs incurred by the Homebuyer at sale or transfer. In the event the net proceeds are less than the outstanding Loan balance, the City reserves the right to determine whether the sales price is comparable to the sales price in an arms-length transaction for a similar unit and to evaluate the closing costs being charged to Homebuyer to ensure they are reasonable and customary.

Net proceeds of sale in excess of the outstanding direct HOME assistance will be retained by the Homebuyer.

To facilitate the expeditious administration of this Section, Homebuyer shall provide notice to the City of any anticipated transfer of title, including but not limited to a sale or foreclosure.

SECTION 7. USE OF HOME FUNDS

Homebuyer agrees that the HOME assistance will be used as gap financing to assist with down payment, closing costs, and/or the purchase price of the Property. This will reduce the total amount the Homebuyer will be required to borrow from a bank, credit union, or other lender in order to purchase the Property. The amount of HOME assistance will not be final until City has updated all necessary underwriting and subsidy layering requirements based on final closing figures.

SECTION 8. LOW INCOME HOMEBUYER

Homebuyer attests that Homebuyer qualifies as a low-income individual or household as defined by the HOME Program. "Low-income" is defined as an individual or household whose gross income does not exceed 80% of the Area Median Income (AMI) as defined by HUD. The City uses the Section 8 Part 5 definition for determining income for HOME homebuyer programs.

SECTION 9. INSURANCE REQUIREMENT

At all times during the term of this Agreement Homebuyer shall maintain a valid and current hazard insurance policy on the Property for the current appraised value of the Property and naming City as an additional loss payee in primary coverage. Failure to maintain a valid and current insurance policy will be considered a breach of this Agreement, and City will have the right to secure insurance for the Property and charge such costs to the Homebuyer or to foreclose on its Deed of Trust, if necessary, to protect the HOME program investment. If the Property is in a 100-year flood zone, Homebuyer shall maintain a current and valid flood insurance policy on the Property. Evidence of insurance must be provided at closing and annually thereafter.

SECTION 10. DEFAULT AND ENFORCEMENT

In the event Homebuyer violates any terms of this Agreement or any other agreement between Homebuyer and City, City shall issue a notice of violation to Homebuyer. Upon receipt of such a notice, Homebuyer agrees to remedy the violation within 30 days or, in the case of violations requiring longer cure periods, City may allow for a period of up to 90 days to correct the violation. In such cases, Homebuyer must take action to begin corrections within 30 days of the date of City's notice of violation. Upon Homebuyer's failure to correct the violation within the allotted time, City may take additional corrective action including suing for specific performance, declaring a default in the Loan and initiating foreclosure proceedings, and seeking any other legal remedies available.

In the event of Homebuyer's uncured violation of the principal residency provisions of Section 5, Homebuyer will be required to repay the entire HOME investment in the Property. The entire HOME investment includes any direct HOME assistance (e.g. the original amount of the Loan) to the Homebuyer described herein and includes any additional HOME funds invested by the City in the Property including any HOME funds used to pay project-related soft costs.

As of the date of this Agreement, the total HOME investment amount to the Homebuyer ***not to exceed*** $_____, in HOME funds to assist the HOMEBUYER with a down payment, closing costs, and/or a portion of the Purchase Price, therefore representing direct HOME assistance to the Homebuyer. **The amount of HOME Assistance will not be final until the City has updated all necessary underwriting requirements relative to the final Purchase Price and/or closing cost. The final amount of HOME Assistance may decrease and will be evidenced at the closing by the Note and Mortgage as it will also be notated on the Notice of Project Completion form.** The City will include, as part of the notice to the Homebuyer of the date of Project Completion anticipation in Section 3, the final HOME Assistance amount, and such notice shall be deemed amended to reflect the actual HOME Assistance provided.

SECTION 11. ROLE OF CITY OF MEMPHIS

As a HOME participating jurisdiction, City is ultimately responsible to HUD for compliance with all HOME requirements, including the enforcement of this Agreement and in particular its provisions related to principal residency and recapture.

Therefore, Homebuyer specifically acknowledges that any information, documents, certifications, warranties, or promises being made to City and are true and correct and that Homebuyer's financial situation has not changed materially since the application for HOME assistance was made. The Homebuyer acknowledges that any discrepancies or misstatements may result in Homebuyer's disqualification from participation in the program and shall be deemed a breach of this Agreement and the Loan, and Homebuyer will be required to repay the entire HOME investment amount.

Further, Homebuyer specifically acknowledges that the City may review, monitor, or seek to confirm the Homebuyer's ongoing compliance with the terms of this Agreement and the Loan, and Homebuyer agrees to provide such information or documents as City may reasonably require in the course of such monitoring or reviews, including but not limited to evidence that the Homebuyer is in compliance with Section 5.

City of Memphis may issue notices of violation, require corrective action, or seek performance using any and all legal remedies available.

SECTION 12. MISCELLANEOUS

The obligations of the parties to this Agreement shall be performable in Memphis, Tennessee. Venue for any action, whether real or asserted, at law or in equity, arising out of the execution, performance, attempted performance or nonperformance of this Agreement, shall lie in Shelby County, Tennessee.

IN ANY QUESTIONS INVOLVING STATE LAW, FOR ANY ACTION, WHETHER REAL OR ASSERTED, AT LAW OR IN EQUITY, ARISING OUT OF THE EXECUTION, PERFORMANCE OR NON-PERFORMANCE OF THIS AGREEMENT, THE CHOICE OF LAW SHALL BE THE LAW AND COURT DECISIONS OF THE STATE OF TENNESSEE, WITHOUT REGARD TO CONFLICT OF LAW OR CHOICE OF LAW PRINCIPLES OF TENNESSEE OR OF ANY OTHER STATE.

None of the rights and remedies conferred upon or reserved to City under this Agreement is intended to be exclusive of any other rights, and each and every right shall be cumulative and concurrent, and may be enforced separately, successively, or together, and may be exercised from time to time as often as may be deemed necessary by City.

Each party has participated in negotiating and drafting this Agreement, so if an ambiguity or a question of interpretation arises, this Agreement is to be construed as if the parties had drafted it jointly. Any rules of construction relating to interpretation against the drafter of an agreement shall not apply to this Agreement and are expressly waived.

The paragraph headings contained herein are for convenience in reference to this Agreement and are not intended to define or to limit the scope of any provision of this Agreement. Where appropriate, all personal pronouns used herein, whether used in the masculine, feminine or neutral gender, shall include all other genders and singular nouns used herein shall include the plural and vice versa.

Executed and effective as of the day and year first above written and for the purposes herein expressed, by parties hereto by and through their duly authorized representative

CITY OF MEMPHIS

By: _____

Paul A. Young, Mayor Date

_____

Ashley Cash Date
Director, HCD

_____

Tannera Gibson Date
Chief Legal Officer/City Attorney

HOMEBUYER

_____

Date

Homebuyer

_____

Date

Homebuyer

Notice of Project Completion Date
City of Memphis DPA HOME Program

HOMEBUYER(S): _____
ADDRESS: _____
CITY, TN ZIP CODE: _____

Dear HOMEBUYER(S):

As you are aware, your purchase of the property at _____ (PROPERTY ADDRESS) was financedin part a HOME Loanfrom the City of Memphis Division of Housing andCommunity Development(HCD) under itsDown Payment AssistanceProgram (DPA). The City/HCD usesfunding received from HUDunder the HOME Investment Partnerships Program (HOME) for its DPA program.

As a part of your purchase, you entered into a Homebuyer Agreement with the City. That agreement was signed by the City and became effective as of_____ (AGREEMENT DATE) and copies of the agreement were provided to you at closing. As part of the closing on your purchase, process you also signed a Note and Mortgage in favor of the City to secure the HOME funds you borrowed.

As of your executionof the Agreement and theclosing, the actual date of "Project Completion" was not known. The date of "Project Completion" affects both the term of your Agreement (see Agreement) with the City and the "Affordability Period" of 10 years, identified in that Agreement.

Pursuant to your Agreement with the City, this Notice is for the purpose of informing you and documenting that the actual date of Project Completion was _____ **(COMPLETION DATE)**. Further, the final amount of HOME direct assistance provided to you, consistent with the Note you signed at closing, was $_____ **(FINAL DPA HOME LOAN)**. Based on the date of Project Completion, the expiration of your Agreement with the City, the end of the Affordability Period required by HOME program regulations, and the final maturity date of the Note for your HOME Loan will all be _____ (END OF TERM DATE).

As called for in your HOME Agreement and in the provisions of the Note, this Notice automatically amends your Agreement and Note to reflect the dates and amounts explained in this Notice.

As a reminder, during the term of your Agreement with the City and the HOME Loan associated with it, you must continue to occupy the property at _____(PROPERTYADDRESS) as your primary place of residence, pay all property taxes when due, maintain appropriate insurance. While the DPA HOME Loan does not require any monthly payments, you must also continue to make payments as agreed on your first mortgage loan.

If you choose to sell your home prior to the expiration of your Agreement with the City and within the term of the associated DPA HOME Loan, please contact HCD at 901-636-7326 to obtain the outstanding balance of your DPA HOME Loan and instructions for remitting payment of any balance due to HCD.

City of Memphis
Division of Housing & Community Development
Affordable Housing Department
Downpayment Assistance Office

Copy to loan/project file.

City of Memphis – HOME Program
Homebuyer Written Agreement_____

NOTICE TO HOMEBUYER: *This Agreement contains requirements you must fulfill in exchange for the federal assistance you are receiving through the HOME Investment Partnerships Program (HOME Program). You should read each paragraph carefully and ask questions regarding any sections you do not fully understand. This Agreement is intended to be separately enforceable from, and survive any prepayment of, the deferred loan and deed of trust as set forth in Section 1 below. You should be sure that you thoroughly understand these documents before you sign them.*

THIS AGREEMENT is entered into this_____day of_____,_____by and between the City of Memphis, a Tennessee municipal agency ("City"), and _____., ("Homebuyer(s)").

WITNESSETH

WHEREAS, City is a participating jurisdiction under the HOME Investment Partnerships Program ("HOME") administered by the United States Department of Housing and Urban Development ("HUD"); and

WHEREAS, City has the authority to enter into binding agreements for the expenditures of all or a portion of its HOME funds, program income, and matching funds; and

WHEREAS, the regulations of 24 CFR Part 92, known as the HOME Final Rule (as now in effect and as may be amended from time to time), which are incorporated by reference hereto and made a part hereof and constitute a part of this Agreement, govern the City's implementation of the HOME program; and

WHEREAS, City has determined that Homebuyer meets the eligibility requirements to purchase the single unit dwelling, including form of homeownership, property standards, and income determination for the property located at _____(the "Property"), the closing on the purchase of which must occur no later than _____ ***(Enter actual closing date).***

NOW, THEREFORE, in accordance with the mutual understanding and agreements set forth herein, City and Homebuyer agree as follows:

SECTION 1. LOAN

The City will loan Homebuyer an amount not to exceed $_____"Loan"), which funds were provided to City by HUD through the HOME Program, to assist Homebuyer with a down payment, closing costs, and/or a portion of the purchase price of the Property, therefore representing direct HOME assistance to the Homebuyer.

The Loan will be evidenced by a promissory note executed by Homebuyer in favor of City ("Note") and secured by a "Declaration of Restrictive Covenants" and Deed of Trust Deferred Payment Loan ("Deed of Trust") securing the promissory note to be filed in the Register's Office of Shelby County, Tennessee which the Property is located. The terms and Maturity of the Loan are as specified in the Note and Deed of Trust, and the Note and Deed of Trust will be released upon repayment of the Loan under the terms set forth therein. Homebuyer may, but is not required to, prepay the Loan, in whole or in part, at any time.

SECTION 2. AGREEMENT TERM.

The duration of this Agreement and the Affordability Period will be the same.

This Agreement shall survive any prepayment of the Loan and/or any release of the Deed of Trust that does not include a transfer of the Property and shall continue for the full Affordability Period, as defined in Section 3. This Agreement will expire upon expiration of the Affordability Period and any and all obligations as set forth in the Declaration of Restrictive Covenants, Note and Deed of Trust shall become null and void upon the maturity dates coinciding with expiration of this Affordability Period.

Once Homebuyer has compiled with the terms of this Agreement and the period of affordability, as described in Section 3 below, has expired, the deferred, forgivable loan, as described in Section 1 above, will have been completely forgiven and no indebtedness will be due to the City nor under the Home Investment Partnerships Program (HOME Program).

SECTION 3. AFFORDABILITY PERIOD

The period of affordability for the Property will be for ten (10) years and will begin on the closing date as noted in this agreement and shall end on_____date (the "Completion Date" and the "Affordability Period"). The Completion Date will occur after the execution of this Agreement. City will provide a formal written notice to the Homebuyer of the Completion Date and the resulting expiration date of this Affordability Period and this Agreement. In general, the City anticipates such notice shall be issued within 90 days of Homebuyer's closing on the purchase of the Property. The expiration of this Agreement and the Affordability Period shall be the same. Additionally, upon issuance of such notice, this Agreement shall be deemed amended to reflect the

expiration date of the Affordability Period and such notice, along with this Agreement, will be filed with the City's Division of Housing and Community Development Loan Portfolio Department.

If Homebuyer sells or transfers ownership of the Property voluntarily or involuntarily, including via foreclosure or deed in lieu of foreclosure, the Affordability Period will end upon the recapture of the full amount of the direct HOME assistance by City as described in Section 6 below.

SECTION 4. PROPERTY VALUE, PURCHASE PRICE LIMITS, AND MAXIMUM HOME INVESTMENT

The appraised value of the Property is $_____, and the purchase price of the Property is $_____ which is within the applicable HOME maximum purchase price limit for the City of Memphis. The applicable purchase price limit is $300,000 for new construction and $300,,000 for existing housing. Further, including any HOME funds invested toward the development of the Property and any of the City's project-related soft costs, the total HOME investment inclusive of the direct HOME assistance to the buyer will not exceed the applicable maximum per-unit subsidy determined by HUD under 24 CFR 92.250. As of the date of this Agreement the applicable subsidy limit for a 4-bedroom unit is $_____

SECTION 5. PRINCIPAL RESIDENCE

During the Affordability Period, barring a sale or transfer of title to the Property, which shall be governed by Section 6 below, the Homebuyer shall at all times maintain the Property as his/her principal residence. Should Homebuyer cease to maintain the Property as his/her principal residence, rent the residence to another party, or convert the Property to a non-residential use, Homebuyer will be in breach of this Agreement and subject to the Default and Enforcement provisions under Section 10.

SECTION 6. RECAPTURE AGREEMENT

In compliance with 24 CFR 92.254(a)(5), if Homebuyer sells or otherwise voluntarily or involuntarily transfers title to the Property during the Affordability Period, including transfer as a result of foreclosure or deed in lieu of foreclosure, then the outstanding direct HOME assistance to the buyer (entire remaining balance of the Loan amount as determined pursuant to the terms of the Note) will be recaptured by the City.

However, if the net proceeds of the sale are insufficient to repay the direct HOME assistance, then the entire net proceeds will be recaptured and retained by City to satisfy both this Agreement and the Loan. If there are no net proceeds, repayment is not required, and the HOME Program requirements are considered to be satisfied. The term "net proceeds" is defined as the sale price less the balance due on superior secured debt and closing costs incurred by the Homebuyer at sale or transfer. In the event the net proceeds are less than the outstanding Loan balance, the City reserves the right to determine whether the sales price is comparable to the sales price in an arms-length transaction for a similar unit and to evaluate the closing costs being charged to Homebuyer to ensure they are reasonable and customary.

Net proceeds of sale in excess of the outstanding direct HOME assistance will be retained by the Homebuyer. To facilitate the expeditious administration of this Section, Homebuyer shall provide notice to the City of any anticipated transfer of title, including but not limited to a sale or foreclosure.

SECTION 7. USE OF HOME FUNDS

Homebuyer agrees that the HOME assistance will be used as gap financing to assist with down payment, closing costs, and/or the purchase price of the Property. This will reduce the total amount the Homebuyer will be required to borrow from a bank, credit union, or other lender in order to purchase the Property. The amount of HOME assistance will not be final until City has updated all necessary underwriting and subsidy layering requirements based on final closing figures.

SECTION 8. LOW INCOME HOMEBUYER

Homebuyer attests that Homebuyer qualifies as a low-income individual or household as defined by the HOME Program. "Low-income" is defined as an individual or household whose gross income does not exceed 80% of the Area Median Income (AMI) as defined by HUD. The City uses the Section 8 Part 5 definition for determining income for HOME homebuyer programs.

SECTION 9. INSURANCE REQUIREMENT

At all times during the term of this Agreement Homebuyer shall maintain a valid and current hazard insurance policy on the Property for the current appraised value of the Property and naming City as an additional loss payee in primary coverage. Failure to maintain a valid and current insurance policy will be considered a breach of this Agreement, and City will have the right to secure insurance for the Property and charge such costs to the Homebuyer or to foreclose on its Deed of Trust, if necessary, to protect the HOME program investment. If the Property is in a 100-year flood zone, Homebuyer shall maintain a current and valid flood insurance policy on the Property. Evidence of insurance must be provided at closing and annually thereafter.

SECTION 10. DEFAULT AND ENFORCEMENT

In the event Homebuyer violates any terms of this Agreement or any other agreement between Homebuyer and City, City shall issue a notice of violation to Homebuyer. Upon receipt of such a notice, Homebuyer agrees to remedy the violation within 30 days or, in the case of violations requiring longer cure periods, City may allow for a period of up to 90 days to correct the violation. In such cases, Homebuyer must take action to begin corrections within 30 days of the date of City's notice of violation. Upon Homebuyer's failure to correct the violation within the allotted time, City may take additional corrective action including suing for specific performance, declaring a default in the Loan and initiating foreclosure proceedings, and seeking any other legal remedies available.

In the event of Homebuyer's uncured violation of the principal residency provisions of Section 5, Homebuyer will be required to repay the entire HOME investment in the Property. The entire HOME investment includes any direct HOME assistance (e.g. the original amount of the Loan) to the Homebuyer described herein and includes any additional HOME funds invested by the City in the Property including any HOME funds used to pay project-related soft costs.

As of the date of this Agreement, the total HOME investment amount to the Homebuyer ***not to exceed*** $ 25,000.00 in HOME funds to assist the HOMEBUYER with a down payment, closing costs, and/or a portion of the Purchase Price, therefore representing direct HOME assistance to the Homebuyer. **The amount of HOME Assistance will not be final until the City has updated all necessary underwriting requirements relative to the final Purchase Price and/or closing cost. The final amount of HOME Assistance may decrease and will be evidenced at the closing by the Note and Mortgage as it will also be notated on the Notice of Project Completion form.** The City will include, as part of the notice to the Homebuyer of the date of Project Completion anticipation in Section 3, the final HOME Assistance amount, and such notice shall be deemed amended to reflect the actual HOME Assistance provided.

SECTION 11. ROLE OF CITY OF MEMPHIS

As a HOME participating jurisdiction, City is ultimately responsible to HUD for compliance with all HOME requirements, including the enforcement of this Agreement and in particular its provisions related to principal residency and recapture.

Therefore, Homebuyer specifically acknowledges that any information, documents, certifications, warranties, or promises being made to City and are true and correct and that Homebuyer's financial situation has not changed materially since the application for HOME assistance was made. The Homebuyer acknowledges that any discrepancies or misstatements may result in Homebuyer's disqualification from participation in the program and shall be deemed a breach of this Agreement and the Loan, and Homebuyer will be required to repay the entire HOME investment amount.

Further, Homebuyer specifically acknowledges that the City may review, monitor, or seek to confirm the Homebuyer's ongoing compliance with the terms of this Agreement and the Loan, and Homebuyer agrees to provide such information or documents as City may reasonably require in the course of such monitoring or reviews, including but not limited to evidence that the Homebuyer is in compliance with Section 5.

City of Memphis may issue notices of violation, require corrective action, or seek performance using any and all legal remedies available.

SECTION 12. MISCELLANEOUS

The obligations of the parties to this Agreement shall be performable in Memphis, Tennessee. Venue for any action, whether real or asserted, at law or in equity, arising out of the execution, performance, attempted performance or nonperformance of this Agreement, shall lie in Shelby County, Tennessee.

IN ANY QUESTIONS INVOLVING STATE LAW, FOR ANY ACTION, WHETHER REAL OR ASSERTED, AT LAW OR IN EQUITY, ARISING OUT OF THE EXECUTION, PERFORMANCE OR NON-PERFORMANCE OF THIS AGREEMENT, THE CHOICE OF LAW SHALL BE THE LAW AND COURT DECISIONS OF THE STATE OF TENNESSEE, WITHOUT REGARD TO CONFLICT OF LAW OR CHOICE OF LAW PRINCIPLES OF TENNESSEE OR OF ANY OTHER STATE.

None of the rights and remedies conferred upon or reserved to City under this Agreement is intended to be exclusive of any other rights, and each and every right shall be cumulative and concurrent, and may be enforced separately, successively, or together, and may be exercised from time to time as often as may be deemed necessary by City.

Each party has participated in negotiating and drafting this Agreement, so if an ambiguity or a question of interpretation arises, this Agreement is to be construed as if the parties had drafted it jointly. Any rules of construction relating to interpretation against the drafter of an agreement shall not apply to this Agreement and are expressly waived.

The paragraph headings contained herein are for convenience in reference to this Agreement and are not intended to define or to limit the scope of any provision of this Agreement. Where appropriate, all personal pronouns used herein, whether used in the masculine, feminine or neutral gender, shall include all other genders and singular nouns used herein shall include the plural and vice versa.

Executed and effective as of the day and year first above written and for the purposes herein expressed, by parties hereto by and through their duly authorized representative

CITY OF MEMPHIS

By: _____

Paul A. Young, Mayor Date

_____

Ashley Cash Date
Director, HCD

_____

Tannera Gibson Date
Chief Legal Officer/City
Attorney

HOMEBUYER

_____

Date

Homebuyer

_____

Date

Homebuyer

City of MEMPHIS
HOUSING & COMMUNITY DEVELOPMENT

Electronic Signature Certificate

I, _____, hereby certify that the faxed/electronic/copied signature below is my legally enforceable signature.

_____

Name Date

City of MEMPHIS
HOUSING & COMMUNITY DEVELOPMENT

ACH PAYMENT ENROLLMENT FORM INSTRUCTIONS

The City of Memphis is encouraging our suppliers to enroll in the Automated Clearing House (ACH) program. To enroll in the program, please complete the "ACH Payment Enrollment Form" on the front of this page, as follows:

1. Complete the "Payee Information" section of the form.

2. **Ask your financial institution to complete the "Financial Institution Information" section. This form should be signed and notarized by the ACH Coordinator at your bank.**

3. Plan arrangements with your bank to be notified of deposit.

4. Make a copy of the completed form for your files.

5. Return the completed original form, along with either a voided company check or deposit slip, to:

   City of Memphis
   Accounts Payable
   125 N. Main Street
   Room 354
   Memphis, Tennessee 38103

PLEASE NOTE:

It is your responsibility to notify the City of Memphis if your banking information changes. (i.e., you change account numbers, banks, etc.)

ACH PAYMENT ENROLLMENT FORM
CITY OF MEMPHIS

This form is used for Automated Clearing House (ACH) payments for City of Memphis Suppliers.

PRIVACY ACT STATEMENT

The following information is provided to comply with the Privacy Act of 1974 (P.L. 93-579). All information collected on this form is required under the provisions of 31 U.S.C. 3322 and 31 CFR 210. This information will be used by the Treasury Department to transmit payment data, by electronic means to vendor's financial institution. Failure to provide the requested information may delay or prevent the receipt of payments through the Automated Clearing House Payment System.

AGENCY INFORMATION

City of Memphis - Accounts Payable		ACH FORMAT NACHA

ADDRESS:
City of Memphis – Accounts Payable
125 N. Main Street Room 354
Memphis, Tennessee 38103

CONTACT: AP Solutions	EMAIL & ~~TELEPHONE NUMBER~~ APSolutions@memphistn.gov | 901-636-7026

PAYEE INFORMATION

NAME:	SSN OR TAXPAYER ID NO:
ADDRESS:	
CONTACT PERSON NAME:	
CONTACT PERSON EMAIL:	**TELEPHONE NUMBER:**

FINANCIAL INSTITUTION INFORMATION

NAME:	
ADDRESS:	
ACH COORDINATOR:	**TELEPHONE NUMBER:**
NINE-DIGIT ROUTING TRANSIT NUMBER:	NOTARY INFO
DEPOSITOR ACCOUNT TITLE:	
DEPOSITOR ACCOUNT NUMBER:	
TYPE OF ACCOUNT (please circle) Check ing Savings Lockbox	

Notice of Project Completion Date
City of Memphis DPA HOME Program

HOMEBUYER(S): _____
ADDRESS: _____
CITY, TN ZIP CODE: _____

Dear HOMEBUYER(S):

As you are aware, your purchase of the property at _____ (PROPERTY ADDRESS) was financed in part a HOME Loan from the City of Memphis Division of Housing and Community Development (HCD) under its Down Payment Assistance Program (DPA). The City/HCD uses funding received from HUD under the HOME Investment Partnerships Program (HOME) for its DPA program.

As a part of your purchase, you entered into a Homebuyer Agreement with the City. That agreement was signed by the City and became effective as of_____ (AGREEMENT DATE) and copies of the agreement were provided to you at closing. As part of the closing on your purchase, process you also signed a Note and Mortgage in favor of the City to secure the HOME funds you borrowed.

As of your execution of the Agreement and the closing, the actual date of "Project Completion" was not known. The date of "Project Completion" affects both the term of your Agreement (see Agreement) with the City and the "Affordability Period" of 5 years, identified in that Agreement.

Pursuant to your Agreement with the City, this Notice is for the purpose of informing you and documenting that the actual date of Project Completion was _____ **(COMPLETION DATE)**. Further, the final amount of HOME direct assistance provided to you, consistent with the Note you signed at closing, was $_____ **(FINAL DPA HOME LOAN)**. Based on the date of Project Completion, the expiration of your Agreement with the City, the end of the Affordability Period required by HOME program regulations, and the final maturity date of the Note for your HOME Loan will all be _____ (END OF TERM DATE).

As called for in your HOME Agreement and in the provisions of the Note, this Notice automatically amends your Agreement and Note to reflect the dates and amounts explained in this Notice.

As a reminder, during the term of your Agreement with the City and the HOME Loan associated with it, you must continue to occupy the property at _____(PROPERTYADDRESS) as your primary place of residence, pay all property taxes when due, maintain appropriate insurance. While the DPA HOME Loan does not require any monthly payments, you must also continue to make payments as agreed on your first mortgage loan.

If you choose to sell your home prior to the expiration of your Agreement with the City and within the term of the associated DPA HOME Loan, please contact HCD at 901-636-7326 to obtain the outstanding balance of your DPA HOME Loan and instructions for remitting payment of any balance due to HCD.

City of Memphis
Division of Housing & Community Development
Affordable Housing Department
Downpayment Assistance Office

Copy to loan/project file.







Protect Your Family From Lead in Your Home

United States Environmental Protection Agency

United States Consumer Product Safety Commission

United States Department of Housing and Urban Development

March 2021

Are You Planning to Buy or Rent a Home Built Before 1978?

Did you know that many homes built before 1978 have **lead-based paint**? Lead from paint, chips, and dust can pose serious health hazards.

Read this entire brochure to learn:

- How lead gets into the body
- How lead affects health
- What you can do to protect your family
- Where to go for more information

Before renting or buying a pre-1978 home or apartment, federal law requires:

- Sellers must disclose known information on lead-based paint or lead-based paint hazards before selling a house.
- Real estate sales contracts must include a specific warning statement about lead-based paint. Buyers have up to 10 days to check for lead.
- Landlords must disclose known information on lead-based paint or lead-based paint hazards before leases take effect. Leases must include a specific warning statement about lead-based paint.

If undertaking renovations, repairs, or painting (RRP) projects in your pre-1978 home or apartment:

- Read EPA's pamphlet, *The Lead-Safe Certified Guide to Renovate Right*, to learn about the lead-safe work practices that contractors are required to follow when working in your home (see page 12).



Simple Steps to Protect Your Family from Lead Hazards

If you think your home has lead-based paint:

- Don't try to remove lead-based paint yourself.
- Always keep painted surfaces in good condition to minimize deterioration.
- Get your home checked for lead hazards. Find a certified inspector or risk assessor at epa.gov/lead.
- Talk to your landlord about fixing surfaces with peeling or chipping paint.
- Regularly clean floors, window sills, and other surfaces.
- Take precautions to avoid exposure to lead dust when remodeling.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe certified renovation firms.
- Before buying, renting, or renovating your home, have it checked for lead-based paint.
- Consult your health care provider about testing your children for lead. Your pediatrician can check for lead with a simple blood test.
- Wash children's hands, bottles, pacifiers, and toys often.
- Make sure children eat healthy, low-fat foods high in iron, calcium, and vitamin C.
- Remove shoes or wipe soil off shoes before entering your house.

Lead Gets into the Body in Many Ways

Adults and children can get lead into their bodies if they:

- Breathe in lead dust (especially during activities such as renovations, repairs, or painting that disturb painted surfaces).
- Swallow lead dust that has settled on food, food preparation surfaces, and other places.
- Eat paint chips or soil that contains lead.

Lead is especially dangerous to children under the age of 6.

- At this age, children's brains and nervous systems are more sensitive to the damaging effects of lead.
- Children's growing bodies absorb more lead.
- Babies and young children often put their hands and other objects in their mouths. These objects can have lead dust on them.



Women of childbearing age should know that lead is dangerous to a developing fetus.

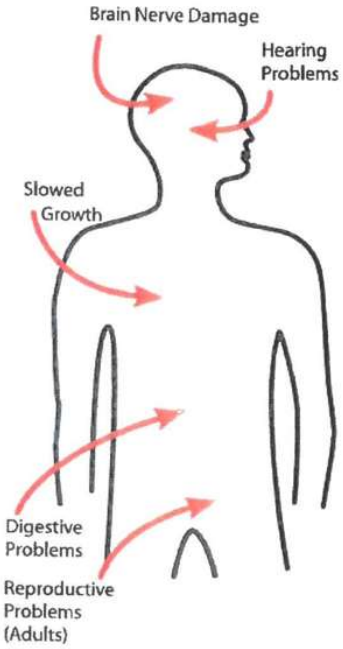
- Women with a high lead level in their system before or during pregnancy risk exposing the fetus to lead through the placenta during fetal development.

Health Effects of Lead

Lead affects the body in many ways. It is important to know that even exposure to low levels of lead can severely harm children.

In children, exposure to lead can cause:

- Nervous system and kidney damage
- Learning disabilities, attention-deficit disorder, and decreased intelligence
- Speech, language, and behavior problems
- Poor muscle coordination
- Decreased muscle and bone growth
- Hearing damage



While low-lead exposure is most common, exposure to high amounts of lead can have devastating effects on children, including seizures, unconsciousness, and in some cases, death.

Although children are especially susceptible to lead exposure, lead can be dangerous for adults, too.

In adults, exposure to lead can cause:

- Harm to a developing fetus
- Increased chance of high blood pressure during pregnancy
- Fertility problems (in men and women)
- High blood pressure
- Digestive problems
- Nerve disorders
- Memory and concentration problems
- Muscle and joint pain

Check Your Family for Lead

Get your children and home tested if you think your home has lead.

Children's blood lead levels tend to increase rapidly from 6 to 12 months of age, and tend to peak at 18 to 24 months of age.

Consult your doctor for advice on testing your children. A simple blood test can detect lead. Blood lead tests are usually recommended for:

- Children at ages 1 and 2
- Children or other family members who have been exposed to high levels of lead
- Children who should be tested under your state or local health screening plan

Your doctor can explain what the test results mean and if more testing will be needed.

Where Lead-Based Paint Is Found

In general, the older your home or childcare facility, the more likely it has lead-based paint.[1]

Many homes, including private, federally-assisted, federally-owned housing, and childcare facilities built before 1978 have lead-based paint. In 1978, the federal government banned consumer uses of lead-containing paint.[2]

Learn how to determine if paint is lead-based paint on page 7.

Lead can be found:

- In homes and childcare facilities in the city, country, or suburbs,
- In private and public single-family homes and apartments,
- On surfaces inside and outside of the house, and
- In soil around a home. (Soil can pick up lead from exterior paint or other sources, such as past use of leaded gas in cars.)

Learn more about where lead is found at epa.gov/lead.

[1] "Lead-based paint" is currently defined by the federal government as paint with lead levels greater than or equal to 1.0 milligram per square centimeter (mg/cm^2), or more than 0.5% by weight.

[2] "Lead-containing paint" is currently defined by the federal government as lead in new dried paint in excess of 90 parts per million (ppm) by weight.

Identifying Lead-Based Paint and Lead-Based Paint Hazards

Deteriorated lead-based paint (peeling, chipping, chalking, cracking, or damaged paint) is a hazard and needs immediate attention. **Lead-based paint** may also be a hazard when found on surfaces that children can chew or that get a lot of wear and tear, such as:

- On windows and window sills
- Doors and door frames
- Stairs, railings, banisters, and porches

Lead-based paint is usually not a hazard if it is in good condition and if it is not on an impact or friction surface like a window.

Lead dust can form when lead-based paint is scraped, sanded, or heated. Lead dust also forms when painted surfaces containing lead bump or rub together. Lead paint chips and dust can get on surfaces and objects that people touch. Settled lead dust can reenter the air when the home is vacuumed or swept, or when people walk through it. EPA currently defines the following levels of lead in dust as hazardous:

- 10 micrograms per square foot ($\mu g/ft^2$) and higher for floors, including carpeted floors
- 100 $\mu g/ft^2$ and higher for interior window sills

Lead in soil can be a hazard when children play in bare soil or when people bring soil into the house on their shoes. EPA currently defines the following levels of lead in soil as hazardous:

- 400 parts per million (ppm) and higher in play areas of bare soil
- 1,200 ppm (average) and higher in bare soil in the remainder of the yard

Remember, lead from paint chips—which you can see—and lead dust—which you may not be able to see—both can be hazards.

The only way to find out if paint, dust, or soil lead hazards exist is to test for them. The next page describes how to do this.

Checking Your Home for Lead

You can get your home tested for lead in several different ways:

- A lead-based paint **inspection** tells you if your home has lead-based paint and where it is located. It won't tell you whether your home currently has lead hazards. A trained and certified testing professional, called a lead-based paint inspector, will conduct a paint inspection using methods, such as:
  - Portable x-ray fluorescence (XRF) machine
  - Lab tests of paint samples



- A **risk assessment** tells you if your home currently has any lead hazards from lead in paint, dust, or soil. It also tells you what actions to take to address any hazards. A trained and certified testing professional, called a risk assessor, will:
  - Sample paint that is deteriorated on doors, windows, floors, stairs, and walls
  - Sample dust near painted surfaces and sample bare soil in the yard
  - Get lab tests of paint, dust, and soil samples
- A combination inspection and risk assessment tells you if your home has any lead-based paint and if your home has any lead hazards, and where both are located.

Be sure to read the report provided to you after your inspection or risk assessment is completed, and ask questions about anything you do not understand.

Checking Your Home for Lead, continued

In preparing for renovation, repair, or painting work in a pre-1978 home, Lead-Safe Certified renovators (see page 12) may:

- Take paint chip samples to determine if lead-based paint is present in the area planned for renovation and send them to an EPA-recognized lead lab for analysis. In housing receiving federal assistance, the person collecting these samples must be a certified lead-based paint inspector or risk assessor
- Use EPA-recognized tests kits to determine if lead-based paint is absent (but not in housing receiving federal assistance)
- Presume that lead-based paint is present and use lead-safe work practices

There are state and federal programs in place to ensure that testing is done safely, reliably, and effectively. Contact your state or local agency for more information, visit epa.gov/lead, or call **1-800-424-LEAD (5323)** for a list of contacts in your area.[3]

[3] Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at 1-800-877-8339.

What You Can Do Now to Protect Your Family

If you suspect that your house has lead-based paint hazards, you can take some immediate steps to reduce your family's risk:

- If you rent, notify your landlord of peeling or chipping paint.
- Keep painted surfaces clean and free of dust. Clean floors, window frames, window sills, and other surfaces weekly. Use a mop or sponge with warm water and a general all-purpose cleaner. (Remember: never mix ammonia and bleach products together because they can form a dangerous gas.)
- Carefully clean up paint chips immediately without creating dust.
- Thoroughly rinse sponges and mop heads often during cleaning of dirty or dusty areas, and again afterward.
- Wash your hands and your children's hands often, especially before they eat and before nap time and bed time.
- Keep play areas clean. Wash bottles, pacifiers, toys, and stuffed animals regularly.
- Keep children from chewing window sills or other painted surfaces, or eating soil.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe Certified renovation firms (see page 12).
- Clean or remove shoes before entering your home to avoid tracking in lead from soil.
- Make sure children eat nutritious, low-fat meals high in iron, and calcium, such as spinach and dairy products. Children with good diets absorb less lead.

Reducing Lead Hazards

Disturbing lead-based paint or removing lead improperly can increase the hazard to your family by spreading even more lead dust around the house.



- In addition to day-to-day cleaning and good nutrition, you can **temporarily** reduce lead-based paint hazards by taking actions, such as repairing damaged painted surfaces and planting grass to cover lead-contaminated soil. These actions are not permanent solutions and will need ongoing attention.
- You can minimize exposure to lead when renovating, repairing, or painting by hiring an EPA- or state-certified renovator who is trained in the use of lead-safe work practices. If you are a do-it-yourselfer, learn how to use lead–safe work practices in your home.
- To remove lead hazards permanently, you should hire a certified lead abatement contractor. Abatement (or permanent hazard elimination) methods include removing, sealing, or enclosing lead-based paint with special materials. Just painting over the hazard with regular paint is not permanent control.

Always use a certified contractor who is trained to address lead hazards safely.

- Hire a Lead-Safe Certified firm (see page 12) to perform renovation, repair, or painting (RRP) projects that disturb painted surfaces.
- To correct lead hazards permanently, hire a certified lead abatement contractor. This will ensure your contractor knows how to work safely and has the proper equipment to clean up thoroughly.

Certified contractors will employ qualified workers and follow strict safety rules as set by their state or by the federal government.

Reducing Lead Hazards, continued

If your home has had lead abatement work done or if the housing is receiving federal assistance, once the work is completed, dust cleanup activities must be conducted until clearance testing indicates that lead dust levels are below the following levels:

- 10 micrograms per square foot ($\mu g/ft^2$) for floors, including carpeted floors
- 100 $\mu g/ft^2$ for interior windows sills
- 400 $\mu g/ft^2$ for window troughs

Abatements are designed to permanently eliminate lead-based paint hazards. However, lead dust can be reintroduced into an abated area.

- Use a HEPA vacuum on all furniture and other items returned to the area, to reduce the potential for reintroducing lead dust.
- Regularly clean floors, window sills, troughs, and other hard surfaces with a damp cloth or sponge and a general all-purpose cleaner.

Please see page 9 for more information on steps you can take to protect your home after the abatement. For help in locating certified lead abatement professionals in your area, call your state or local agency (see pages 15 and 16), epa.gov/lead, or call 1-800-424-LEAD.

Renovating, Repairing or Painting a Home with Lead-Based Paint

If you hire a contractor to conduct renovation, repair, or painting (RRP) projects in your pre-1978 home or childcare facility (such as pre-school and kindergarten), your contractor must:

- Be a Lead-Safe Certified firm approved by EPA or an EPA-authorized state program
- Use qualified trained individuals (Lead-Safe Certified renovators) who follow specific lead-safe work practices to prevent lead contamination
- Provide a copy of EPA's lead hazard information document, *The Lead-Safe Certified Guide to Renovate Right*



RRP contractors working in pre-1978 homes and childcare facilities must follow lead-safe work practices that:

- **Contain the work area.** The area must be contained so that dust and debris do not escape from the work area. Warning signs must be put up, and plastic or other impermeable material and tape must be used.
- **Avoid renovation methods that generate large amounts of lead-contaminated dust.** Some methods generate so much lead-contaminated dust that their use is prohibited. They are:
  - Open-flame burning or torching
  - Sanding, grinding, planing, needle gunning, or blasting with power tools and equipment not equipped with a shroud and HEPA vacuum attachment
  - Using a heat gun at temperatures greater than 1100°F
- **Clean up thoroughly.** The work area should be cleaned up daily. When all the work is done, the area must be cleaned up using special cleaning methods.
- **Dispose of waste properly.** Collect and seal waste in a heavy duty bag or sheeting. When transported, ensure that waste is contained to prevent release of dust and debris.

To learn more about EPA's requirements for RRP projects, visit epa.gov/getleadsafe, or read *The Lead-Safe Certified Guide to Renovate Right.*

Other Sources of Lead

Lead in Drinking Water

The most common sources of lead in drinking water are lead pipes, faucets, and fixtures.

Lead pipes are more likely to be found in older cities and homes built before 1986.

You can't smell or taste lead in drinking water.

To find out for certain if you have lead in drinking water, have your water tested.

Remember older homes with a private well can also have plumbing materials that contain lead.

Important Steps You Can Take to Reduce Lead in Drinking Water

- Use only cold water for drinking, cooking and making baby formula. Remember, boiling water does not remove lead from water.
- Before drinking, flush your home's pipes by running the tap, taking a shower, doing laundry, or doing a load of dishes.
- Regularly clean your faucet's screen (also known as an aerator).
- If you use a filter certified to remove lead, don't forget to read the directions to learn when to change the cartridge. Using a filter after it has expired can make it less effective at removing lead.

Contact your water company to determine if the pipe that connects your home to the water main (called a service line) is made from lead. Your area's water company can also provide information about the lead levels in your system's drinking water.

For more information about lead in drinking water, please contact EPA's Safe Drinking Water Hotline at 1-800-426-4791. If you have other questions about lead poisoning prevention, call 1-800 424-LEAD.*

Call your local health department or water company to find out about testing your water, or visit epa.gov/safewater for EPA's lead in drinking water information. Some states or utilities offer programs to pay for water testing for residents. Contact your state or local water company to learn more.

* Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at 1-800-877-8339.

Other Sources of Lead, continued

- **Lead smelters** or other industries that release lead into the air.
- **Your job.** If you work with lead, you could bring it home on your body or clothes. Shower and change clothes before coming home. Launder your work clothes separately from the rest of your family's clothes.
- **Hobbies** that use lead, such as making pottery or stained glass, or refinishing furniture. Call your local health department for information about hobbies that may use lead.
- Old **toys** and **furniture** may have been painted with lead-containing paint. Older toys and other children's products may have parts that contain lead.[4]
- Food and liquids cooked or stored in **lead crystal** or **lead-glazed pottery or porcelain** may contain lead.
- Folk remedies, such as **"greta"** and **"azarcon,"** used to treat an upset stomach.

[4] In 1978, the federal government banned toys, other children's products, and furniture with lead-containing paint. In 2008, the federal government banned lead in most children's products. The federal government currently bans lead in excess of 100 ppm by weight in most children's products.

For More Information

The National Lead Information Center
Learn how to protect children from lead poisoning and get other information about lead hazards on the Web at epa.gov/lead and hud.gov/lead, or call **1-800-424-LEAD (5323).**

EPA's Safe Drinking Water Hotline
For information about lead in drinking water, call **1-800-426-4791**, or visit epa.gov/safewater for information about lead in drinking water.

Consumer Product Safety Commission (CPSC) Hotline
For information on lead in toys and other consumer products, or to report an unsafe consumer product or a product-related injury, call **1-800-638-2772,** or visit CPSC's website at cpsc.gov or saferproducts.gov.

State and Local Health and Environmental Agencies
Some states, tribes, and cities have their own rules related to lead-based paint. Check with your local agency to see which laws apply to you. Most agencies can also provide information on finding a lead abatement firm in your area, and on possible sources of financial aid for reducing lead hazards. Receive up-to-date address and phone information for your state or local contacts on the Web at epa.gov/lead, or contact the National Lead Information Center at **1-800-424-LEAD.**

Hearing- or speech-challenged individuals may access any of the phone numbers in this brochure through TTY by calling the toll-free Federal Relay Service at **1-800-877-8339**.

U. S. Environmental Protection Agency (EPA) Regional Offices

The mission of EPA is to protect human health and the environment. Your Regional EPA Office can provide further information regarding regulations and lead protection programs.

Region 1 (Connecticut, Massachusetts, Maine, New Hampshire, Rhode Island, Vermont)

Regional Lead Contact
U.S. EPA Region 1
5 Post Office Square, Suite 100, OES 05-4
Boston, MA 02109-3912
(888) 372-7341

Region 2 (New Jersey, New York, Puerto Rico, Virgin Islands)

Regional Lead Contact
U.S. EPA Region 2
2890 Woodbridge Avenue
Building 205, Mail Stop 225
Edison, NJ 08837-3679
(732) 906-6809

Region 3 (Delaware, Maryland, Pennsylvania, Virginia, DC, West Virginia)

Regional Lead Contact
U.S. EPA Region 3
1650 Arch Street
Philadelphia, PA 19103
(215) 814-2088

Region 4 (Alabama, Florida, Georgia, Kentucky, Mississippi, North Carolina, South Carolina, Tennessee)

Regional Lead Contact
U.S. EPA Region 4
AFC Tower, 12th Floor, Air, Pesticides & Toxics
61 Forsyth Street, SW
Atlanta, GA 30303
(404) 562-8998

Region 5 (Illinois, Indiana, Michigan, Minnesota, Ohio, Wisconsin)

Regional Lead Contact
U.S. EPA Region 5 (LL-17J)
77 West Jackson Boulevard
Chicago, IL 60604-3666
(312) 353-3808

Region 6 (Arkansas, Louisiana, New Mexico, Oklahoma, Texas, and 66 Tribes)

Regional Lead Contact
U.S. EPA Region 6
1445 Ross Avenue, 12th Floor
Dallas, TX 75202-2733
(214) 665-2704

Region 7 (Iowa, Kansas, Missouri, Nebraska)

Regional Lead Contact
U.S. EPA Region 7
11201 Renner Blvd.
Lenexa, KS 66219
(800) 223-0425

Region 8 (Colorado, Montana, North Dakota, South Dakota, Utah, Wyoming)

Regional Lead Contact
U.S. EPA Region 8
1595 Wynkoop St.
Denver, CO 80202
(303) 312-6966

Region 9 (Arizona, California, Hawaii, Nevada)

Regional Lead Contact
U.S. EPA Region 9 (CMD-4-2)
75 Hawthorne Street
San Francisco, CA 94105
(415) 947-4280

Region 10 (Alaska, Idaho, Oregon, Washington)

Regional Lead Contact
U.S. EPA Region 10 (20-C04)
Air and Toxics Enforcement Section
1200 Sixth Avenue, Suite 155
Seattle, WA 98101
(206) 553-1200

Consumer Product Safety Commission (CPSC)

The CPSC protects the public against unreasonable risk of injury from consumer products through education, safety standards activities, and enforcement. Contact CPSC for further information regarding consumer product safety and regulations.

CPSC
4330 East West Highway
Bethesda, MD 20814-4421
1-800-638-2772
cpsc.gov or saferproducts.gov

U. S. Department of Housing and Urban Development (HUD)

HUD's mission is to create strong, sustainable, inclusive communities and quality affordable homes for all. Contact to Office of Lead Hazard Control and Healthy Homes for further information regarding the Lead Safe Housing Rule, which protects families in pre-1978 assisted housing, and for the lead hazard control and research grant programs.

HUD
451 Seventh Street, SW, Room 8236
Washington, DC 20410-3000
(202) 402-7698
hud.gov/lead

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U. S. EPA Washington DC 20460
U. S. CPSC Bethesda MD 20814
U. S. HUD Washington DC 20410

EPA-747-K-12-001
March 2021

IMPORTANT!

Lead From Paint, Dust, and Soil in and Around Your Home Can Be Dangerous if Not Managed Properly

- Children under 6 years old are most at risk for lead poisoning in your home.
- Lead exposure can harm young children and babies even before they are born.
- Homes, schools, and child care facilities built before 1978 are likely to contain lead-based paint.
- Even children who seem healthy may have dangerous levels of lead in their bodies.
- Disturbing surfaces with lead-based paint or removing lead-based paint improperly can increase the danger to your family.
- People can get lead into their bodies by breathing or swallowing lead dust, or by eating soil or paint chips containing lead.
- People have many options for reducing lead hazards. Generally, lead-based paint that is in good condition is not a hazard (see page 10).